

Judgement Sheet
IN THE LAHORE HIGH COURT
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Criminal Appeal No. 1035-J of 2024
(Muhammad Imran, etc. v. The State, etc.)

JUDGEMENT

Date of hearing:	19.12.2025
Appellants by:	Mr. Rana Muhammad Nadeem Kanjoo, Advocate
State by:	Ch. Muhammad Sadiq, Additional Prosecutor General with Akram S.I.
Complainant by:	Ch. Bashir Ahmad Ansari, Advocate

MUHAMMAD JAWAD ZAFAR, J.: Through this jail appeal, Muhammad Imran and Khadim Hussain (“**appellants**”) have assailed their conviction by impugning the judgement dated 31.10.2024 (“**impugned judgement**” or “**impugned judgement dated 31.10.2024**”), who, along with co-accused Khalil Ahmad, Muhammad Amjad, Noor Muhammad, and Ashiq Hussain (“**co-accused**”), were tried by the learned Additional Sessions Judge, Kot Adu (“**trial court**”) in a private complaint (“**private complaint**” or “**complaint**”) arising out of a crime report bearing FIR No. 754 of 2021 dated 26.12.2021, offences under Section 302, 34, and 109 of the Pakistan Penal Code 1860 (“**PPC**”), registered with Police Station Sinawan, District Muzaffargarh (“**crime report**” or “**FIR**”). On the conclusion of the trial, the learned trial court, while acquitting co-accused, found the appellants guilty and thus convicted and sentenced them *vide* impugned judgement dated 31.10.2024 to rigorous imprisonment for life as *ta’zir* under Section 302 (b) read with Section 34 of the PPC and they were also made liable to pay the compensation of PKR

300,000/- each, in terms of Section 544-A of the Code of Criminal Procedure 1898 (“**Code**” or “**Cr.P.C**”) to the legal heirs of the deceased, and in default thereof, they were directed to further undergo simple imprisonment for six (6) months under Section 544-A(2) of the Code. The benefit of Section 382-B of the Code was extended to the appellants.

2. The gist of the allegations against the appellants is that on 26.12.2021, the appellants, along with their co-accused, all armed with their respective firearms, came to “Adda 1-R”, and in the presence of complainant Muhammad Hanif (PW-1), Muhammad Habib (not produced), and Muhammad Shafique (PW-2), made as many as eight fire-shots, which landed on different parts of the person of the deceased and thereafter, they decamped while brandishing their respective weapons.

3. Initially, the complainant (PW-1) got the crime report, pertaining to the incident, registered; however, being dissatisfied with police investigation, the complainant filed the private complaint, in which process was issued and the appellants were formally indicted. They pleaded not guilty and claimed trial. To prove its case, the prosecution produced as many as three (3) prosecution witnesses, while the learned trial court summoned five (5) persons as court witnesses.

4. Subsequently, the statements of the appellants, alongwith the acquitted co-accused, were recorded in terms of Section 342 of the Code, in which they denied the allegations levelled against them. They, however, did not opt to appear as their own witnesses in terms of subsection (2) of Section 340 of the Code, but did produce copy of FIR No. 167 of 2021 dated 28.03.2021, for offences under Sections 302, 324, 447, 511, 148 and 149 of the PPC, registered with Police Station Sinawan, District Muzaffargarh, along with copy of Report

under Section 173 of the Code of the said FIR, as well as copy of judgement dated 27.11.2023.

5. On the conclusion of trial, the learned trial court, while acquitting co-accused of the appellants, found the case against them to have been proven to a hilt and thus, convicted and sentenced them as detailed hereinabove.

6. Heard; perused.

7. Before delving into appraisal of evidence, it ought to be mentioned at the outset that co-accused, namely, Khalil Ahmad and Muhammad Amjad, who were ascribed the same role of inflicting firearm injuries on the person of the deceased, were acquitted by the learned trial court, and no criminal appeal against their acquittal had been filed; thus, their acquittal had attained finality. To this end, it is a settled principle of criminal jurisprudence that when evidence is found doubtful to the extent of acquitted co-accused having the same or similar roles, then the conviction of the remaining accused/appellants cannot be sustained in absence of credible independent corroboration.¹

8. The material available on record was meticulously scrutinized and upon such scrutiny, it evinces that the evidence led by the prosecution, in its entirety, is the same and no credible independent corroboration, to the extent of the appellants, exists. It follows that in the crime report, only the date of occurrence is mentioned, whereas no definite time of occurrence is stated therein, rather all that is mentioned is that the incident took place at or about “*Maghrib Vaila*”. Due to such vagueness, the body of evidence was appraised and evidently, no number of the crime report found mentioned in the inquest report, and despite the local police becoming cognizant about the occurrence at 5:45 p.m., the crime report had not get lodged until 06:30 p.m., after a delay of forty-five (45) minutes.

¹ See “*Pervaiz Khan v. The State*” (2022 SCMR 393).

Harrowingly, in the autopsy report, the time of demise of the deceased, as per police papers, is scribed as 05:55 p.m., which is ten (10) minutes after the time at which the police became aware about the commission of offence. When all of these factors are taken in concert with the fact that no time of receipt of police papers finds any mention in the autopsy report, it can safely be concluded that the crime report got lodged *ante-timed* by stopping the relevant police register and at the time of conducting the post-mortem examination, the story of the prosecution was still in its embryo, to conceal the delay in the registration of FIR and give the illusion that it was promptly lodged.²

9. As a consequence thereof, the depositions of the witnesses of the ocular account were examined to depict as to whether they were planted or natural witnesses of the incident. To this end, at the cost of reiteration, the allegation of the prosecution is that the appellants, along with their co-accused persons (since acquitted), inflicted firearm injuries on the person of the deceased in the presence of the complainant Muhammad Hanif (PW-1), Muhammad Habib (not produced), and Muhammad Shafique (PW-2). Testimonies of the said witnesses were perused. Muhammad Hanif (PW-1) stated that he was an *Imam Masjid* and the ‘*distance between the said Masjid and the place of occurrence is about about 3 ½ kilometers*’, while Muhammad Shafique (PW-2) deposed that ‘*On the day of occurrence, I went to fix soling near P.S Sinawan. ... Distance between police station Sinawan and the place of occurrence is about [sic] 16-KM*’. From the above, it becomes apparent that neither of the said witnesses was a resident of the place of occurrence, and by virtue thereof, they were mere chance witnesses, who, in the ordinary course of events, were not supposed to be present at the crime scene. As such, it was incumbent upon both the said witnesses to justify their presence at the place of occurrence.

² See “*Muhammad Iqbal v. The State*” (2023 PCr.LJ 402 Lahore).

Their depositions were minutely examined to see if any plausible explanation was rendered by them, and while making such probe, it becomes clear that no such plausible or legal explanation was provided by them, but on the contrary, according to column No. 4 of the inquest report, as well as the relevant column of the post-mortem report, the witnesses who identified the corpse of the deceased before his autopsy were Muhammad Bilal (PW-3) and Allah Wasaya (not produced), neither of whom is a witness of the ocular account. Therefore, this Court is firm of the view that the said witnesses were, at best, chance witnesses.³ This Court is not oblivious to the trite principle of law that when a single doubt shakes the credibility of the presence of a witness at the venue of crime, the doubt suffices to discard the testimony of the said witness in its entirety.⁴ Consequently, the depositions of the witnesses of the ocular account are discarded.

10. This may also be examined from another lens. Article 129 of the Qanun-e-Shahadat Order 1984 (“QSO”), permits this Court to presume facts based on the natural course of human behaviour or natural events, and any conduct deviating from the usual or expected human conduct is indicative of the fact that the witness was not present at the scene of the crime. In this case, perusal of the testimony of medical officer Dr. Saif-ur-Rehman (CW-1), duly supported by the autopsy report, provides that the difference between the time of injuries and the time of demise of the deceased was about fifteen (15) to twenty (20) minutes. However, the aforementioned witnesses of the ocular account did not render any medical aid or make any effort to rush the deceased to the nearest medical facility for such purpose. No material is available on record in the shape of blood-stained clothes, or vehicle on which the deceased, in injured condition, was taken to the hospital, which would have been smeared with blood, or even any

³ See “*Abdul Hayee and Abdullan alias Ghazali v. The State*” (2025 SCMR 281); and, “*Muhammad Hassan v. The State*” (2024 SCMR 1427).

⁴ See “*Mst. Rukhsana Begum v. Sajjad*” (2017 SCMR 596).

call to the rescue 1122 helpline number. In view of the unnatural conduct attributed to the said witnesses, this Court entertains no manner of doubt that they were not present at the place of occurrence and were subsequently planted in order to portray an unseen occurrence as one allegedly witnessed by them.⁵ This aspect, in and of itself, shakes the entire edifice of the case of the prosecution and such unnatural conduct on the part of witnesses, reasonably hypothesises their absence from the crime scene.⁶ It would also not be out of place to mention herein that the prosecution withheld the deposition of eyewitness of the crime report, namely, Allah Wasaya (not produced), which at once attracts illustration (g) of Article 129 of the QSO, which provides that any evidence, which is available with the parties, is withheld and not produced, then in that instance, it shall be presumed that had the said piece of evidence been produced, the same would have gone against the party withholding it.⁷

11. The remaining pieces of evidence relied upon by the prosecution are medical evidence, surveillance footage, recovery, and motive. Each of these are deliberated upon in turn. Medical evidence was brought on record in the shape of deposition of Medical Officer Dr. Saif-ur-Rehman (CW-1) and the autopsy report. A probe into the matter reveals that the injuries allegedly inflicted upon the deceased during the occurrence were not mentioned in the autopsy report, and only after an inordinate delay of twenty-five (25) days, i.e. on 19.01.2022, were the descriptions of the injuries furnished by the Medical Officer (CW-1). Further, the medical officer (CW-1) conceded during the course of cross-examination as correct that the corpse of the deceased was not before him on 19.01.2022, when he gave opinion *qua* the number of injuries as well as opinion pertaining to the quantum of exit and entry wounds. Due to the said reasons, the

⁵ See "*Mst. Rukhsana Begum v. Sajjad*" (2017 SCMR 596); and, "*Pathan v. The State*" (2015 SCMR 315).

⁶ See "*Abdul Latif v. Noor Zaman*" (2021 SCMR 1428).

⁷ See "*Mst. Saima Noreen v. The State*" (2024 SCMR 1310).

medical evidence is defective and no reliance can be placed on the same. Even *arguendo*, if, despite its flaws, the autopsy report is taken as the Gospel truth, even then the same is of no help to the case of the prosecution because there is conflict between the ocular and medical evidence. In the ocular testimonies, eight (8) injuries were inflicted on the deceased by four (4) assailants; contradictorily, according to the deposition of medical officer (CW-1) and clarification letter dated 19.01.2022, nine (9) injuries were mentioned with “inverted margins”, which is one (1) more compared to the ocular account.

12. In the same vein, despite the allegation against the appellants being inflicting injuries with pistols, pellets were recovered by the medical officer (CW-1) from the corpse of the deceased. Imperative to take into consideration, at this junction, that conflict between oral testimonies and medical evidence can be of varied dimensions and shapes⁸ and is utilized by Courts of law as a means of determining whether there is foul play on part of the prosecution by way of planting witnesses or whether the witnesses alleging the occurrence in fact witnessed the scene of the crime. In instances where the unnatural demise is due to injuries or wounds, and it is claimed that they were caused by a lethal weapon, *‘it has always been considered to be the duty of the prosecution to prove by expert evidence that it was likely or at least possible for the injuries to have been caused with the weapon with which and in the manner in which they are alleged to have been caused’*.⁹ For determining the possibility, X-ray examination is conducted before carrying out the autopsy, which helps in evaluating the firearm wounds and identifying the type of ammunition or weapon utilized in causing the wound or injury.¹⁰ With this in mind, it ought to be borne in mind that pistols, in essence, are rifled weapons, akin in nature to revolvers, standard rifles

⁸ See *“Thaman Kamur v. State of Union Territory of Chandigarh”* (AIR 2003 Supreme Court 3975).

⁹ See *“Mobinder Singh v. State”* (AIR 1953 Supreme Court 415).

¹⁰ “Injuries by Mechanical Violence.” 2011. In *A Text-Book of Medical Jurisprudence and Toxicology*, 24th ed., 568.

and sten-guns, in as much as the cartridge used therein is bullets and not cartridges containing pellets, like those used in shot guns, such as double barrel or over-under guns. Rifling is made to impart spin to the elongated bullet to keep it steady in its flight to the target. The spent bullets carry tell-tale rifling marks on them by which the weapons they are fired from are identified.¹¹ This calls into question the authenticity of the testimonies of the witnesses of the ocular account. Reason being that the injuries quite clearly were caused by pellets, but pistols do not contain pellets, they contain bullets. In a catena of cases,¹² where the weapon of offence is incapable of causing the injury or wound on the deceased, the Courts of law have held that medical evidence is not in consonance with the oral testimonies and have acquitted the accused because the same substantiates the fact that the occurrence went unwitnessed. In this case, as already highlighted, the prosecution alleged that all the assailants were carrying, and made fire-shots from pistols, while according to the deposition of the medical officer, two (2) pellets were recovered and injury No. 15 is a pellet recovery injury; and, in addition thereto, there is discrepancy between the number of injuries, as illustrated hereinabove, leads to the only logical conclusion that there is conflict between the ocular testimonies and medical evidence.¹³ To this end, it is a settled principle of criminal jurisprudence that any conflict between the ocular and medical account is fatal to the case of the prosecution and the benefit thereof is to be given to the accused.¹⁴

¹¹ "Ballistics and Fire Arms Etc." n.d. Prosecutor General. Government of the Punjab. https://pg.punjab.gov.pk/ballistics_and_fire_arms_etc.

¹² See "*Hussain Ali v. The State*" (1977 SCMR 161); "*Anwar v. The State*" (2020 MLD 841 Balochistan (dB)); "*Inayatullah v. The State*" (2019 PCr.LJ 1392 Peshawar (dB)); "*Allah Dad Sangrah v. The State*" (2018 YLR 2645 Sindh); "*Muhammad Tariq v. The State*" (2017 YLR 1999 Lahore (dB)); "*Gul Zaman v. The State*" (2017 YLR 1338 Sindh (dB)); "*Ehsan Ullah v. The State*" (2011 YLR 1614 Lahore (dB)); "*Muhammad Arshad v. The State*" (2010 YLR 1923 Lahore (dB)); "*Bakhsa v. The State*" (2007 YLR 1100 Lahore (dB)); "*Shahid Mahmood v. The State*" (2007 YLR 831 Lahore (dB)); "*Beebal v. The State*" (1980 PCr.LJ 119 Lahore); "*Ghulam Hussain v. The State*" (1976 PCr.LJ 1402 Karachi (dB) = PLD 1976 Karachi 1160 (dB)); "*Ranjho v. The State*" (1971 PCr.LJ 1078 Karachi (dB)); and, "*Deo Narian Yadav v. State of U.P.*" [2021 SCC Online All 611].

¹³ See "*Wazir v. The State*" (2025 SCP 343).

¹⁴ See "*Muhammad Nawaz v. The State*" (2025 SCMR 1053); and, "*Chetan v. The State*" (2025 SCMR 944).

13. Adverting to the surveillance footage, on which much emphasis was laid upon by the prosecution. It has been observed that the said CCTV footage does not capture the incident, but pertains to a petrol station, at some distance from the venue of occurrence. Similarly, no forensic examination of the CCTV footage was conducted; therefore, while bowing down to the wisdom laid down by the honourable Supreme Court of Pakistan in the case of “Ishtiaq Ahmed Mirza v. Federation of Pakistan”,¹⁵ the surveillance footage is discarded.

14. Paramount to observe that in spite of the occurrence taking place on 26.12.2021, the private complaint was instituted on 23.09.2023, after inordinate delay of one (1) year, eight (8) months, and twenty-nine (29) days from the date of occurrence, for which no legal excuse or plausible explanation has been provided by the complainant. Although there is no limitation duration prescribed for filing of a private complaint under Section 200 of the Code; however, the delay in approaching the Court casts doubt on the veracity of allegations levelled therein,¹⁶ which has not been explained, thereby raising suspicion towards the truthfulness of the case of the prosecution.

15. Insofar as the recovery of the weapon of offence from the appellants is concerned, suffice to observe that the recovery was made from an open place and no independent witnesses were associated with the search. This contravenes the mandatory provision of Section 103 of the Code, and no sanctity can be attached to the recovery made from the appellants.¹⁷ Besides this the pellets/crime empties were not sent to the office of the Punjab Forensic Science Agency (“**PFSA**”)

¹⁵ PLD 2019 Supreme Court 675.

¹⁶ See “Muhammad Fiaz Khan v. Ajmer Khan” (2010 SCMR 105); “Muhammad Akbar v. Sana Bibi” (2018 PCr.LJ Note 113 Lahore); “Muhammad Riaz v. The State” (PLD 2018 Lahore 118); and, “Inayat Bibi v. The State” (2017 MLD 920 Lahore).

¹⁷ See “Muhammad Azam v. The State” (PLD 1996 Supreme Court 67 (5-MB)).

with the weapon of offence in order to connect them with the recovered murder weapons; therefore, In such a situation, the recovery, stripped of scientific support, stands materially weakened and does not advance the prosecution's case in any meaningful way.¹⁸

16. The motive of the case was alleged as previous litigation. The appellants have not denied the existence of previous litigation, but have stated in their statements under Section 342 of the Code that they were falsely implicated in this case FIR due to previous enmity stemming from the criminal case between the parties in FIR No. 167 of 2021 dated 28.03.2021, for offences under Section 302, 324, 447, 511, 148 and 149 of the PPC, registered with the Police Station Sinawan, Muzaffargarh. It was argued that the appellants themselves had admitted to the motive aspect of the case, and as such, the same stands proved. Motive has always been considered as a double-edged sword, that cuts both ways; in view thereof, this Court has no other option but to conclude that the private complaint was merely filed as a counterblast to the aforementioned crime report bearing FIR No. 167 of 2021.

17. From the above-stated facts and circumstances, it is abundantly clear that in this particular case, the prosecution has failed to prove its case against the appellants through cogent, reliable and trustworthy evidence; rather, the said evidence is burdened with major discrepancies, which create serious doubts about its authenticity. It is trite that it is not necessary that there be multiple infirmities in the prosecution's case or several circumstances creating doubt. A single or slightest doubt, if found reasonable, in the case of the prosecution, is sufficient to entitle the accused to its benefit, not as a matter of grace and concession but as a matter of right.¹⁹

¹⁸ See "*Muhammad Asghar v. The State*" (2025 SCMR 1616); and, "*Ghulam Rasool v. The State*" (2024 SCMR 2048).

¹⁹ See "*Khair Muhammad v. The State*" (2025 SCMR 1599); "*Muhammad Bilal v. The State*" (2025 SCMR 1580); "*Obaidullah v. The State*" (2025 SCMR 1558); "*Sajjad Hussain v. The State*" (2022 SCMR 1540); "*Abdul Ghafoor v. The State*" (2022 SCMR 1527); "*Kashif Ali v. The State*" (2022 SCMR 1515); "*Muhammad Ashraf v. The State*" (2022

18. In view thereof, criminal jail appeal bearing No. 1035-J of 2024 of appellants Muhammad Imran and Khadim Hussain is **accepted** in *toto*; the conviction and sentence of the appellants recorded by the learned trial court *vide* impugned judgement dated 31.10.2024 is **set aside**; and, as a consequence whereof, appellants Muhammad Imran and Khadim Hussain are acquitted of the charge levelled against them. The appellants, if not required in any other case, are required to be released forthwith.

(MUHAMMAD JAWAD ZAFAR)
JUDGE

Approved for Reporting.

JUDGE

Ejaz*

SCMR 1328); “*Muhammad Imran v. The State*” (2020 SCMR 857); “*Mst. Asia Bibi v. The State*” (PLD 2019 Supreme Court 64); “*Abdul Jabbar v. The State*” (2019 SCMR 129); “*Muhammad Mansha v. The State*” (2018 SCMR 772); “*Gul Dast Khan v. The State*” (2009 SCMR 431); “*Tariq Pervaiz v. The State*” (1995 SCMR 1345); and, “*Daniel Boyd (Muslim Name Saifullah) v. The State*” (1992 SCMR 196).